

Section 11.

SCHEDULE.**ENACTMENTS REPEALED.**

Session and Chapter.	Short Title.	Extent of Repeal.
62 & 63 Vict. c. 44.	The Small Dwellings Acquisition Act, 1899.	Subsection (3) of section one.
9 Edw. 7. c. 44.	The Housing, Town Planning, &c., Act, 1909.	In subsection (5) of section fifteen the words "at a rate not exceeding five pounds per centum per annum."
9 & 10 Geo. 5. c. 35.	The Housing, Town Planning, &c., Act, 1919.	In subsections (3) and (4) of section twenty-eight the words "at a rate not exceeding five pounds per centum per annum," and subsection (2) of section forty-one.
9 & 10 Geo. 5. c. 45.	The Housing (Ireland) Act, 1919.	In subsections (3) and (4) of section twenty-three the words "at a rate not exceeding five per centum per annum."
9 & 10 Geo. 5. c. 99.	The Housing (Additional Powers) Act, 1919.	Section five.

CHAPTER 20.

An Act to provide for the apportionment of annuities created by the redemption of tithe rentcharge.
[28th July 1921.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Apportionment of tithe redemption annuities.

1.—(1) An order of apportionment of an annuity charged on any land under section four of the Tithe Act, 1918, or under this Act, may be made by the Minister of

Agriculture and Fisheries, under sections ten to fourteen, inclusive, of the Inclosure Act, 1854, on the application of any person interested, according to the provisions of the Inclosure Acts, 1845 to 1882, in the land charged or any part thereof, without the concurrence of any other person, and in any such case the provisions of those sections shall apply with the exception of the proviso to section eleven and the words "so far as the same has been apportioned upon the lands of persons interested" and making application as aforesaid" in section thirteen.

8 & 9 Geo. 5.
c. 54.
17 & 18 Vict.
c. 97.

(2) In any case to which this Act applies the Minister may, on the application of the person interested as aforesaid in the annuity which is apportioned by the Order, require, as a condition of making the Order, that any apportioned part of the annuity which does not exceed the yearly sum of two pounds shall be redeemed forthwith.

(3) Such fee as the Treasury may sanction shall be payable to the Minister by an applicant for an order under this section upon the issue of the order.

(4) An apportioned part of an annuity shall be a land charge within the meaning of the Land Charges Registration and Searches Act, 1888.

51 & 52 Vict.
c. 51.

(5) The expenses necessarily incurred in the registration of an apportioned part of an annuity under the said Act or the Land Transfer Acts, 1875 and 1897, shall be treated as part of the expenses incident to the apportionment.

38 & 39 Vict.
c. 87.
60 & 61 Vict.
c. 65.

2. Section twenty-one of the Settled Land Act, 1882, shall have effect as if the modes of application of capital money arising under that Act, which are specified in such section, included the discharge, purchase or redemption of any apportioned part of an annuity charged under section four of the Tithe Act, 1918, on the settled land, or any part thereof, or in the discharge of such part of any such apportioned part as does not represent interest.

Application of capital moneys to redemption of tithe redemption annuities.
45 & 46 Vict.
c. 38.

3. This Act may be cited as the Tithe Annuities Apportionment Act, 1921.

Short title.

